

#	Case Name	Tentative
3	25-01485306 <i>Creditors Adjustment Bureau, Inc. vs. The Bisogno Company</i>	1) Motion to Compel Deposition (Oral or Written) 2) Motion to Compel Response to Requests for Admissions
4	24-01416984 <i>Dela Cruz vs. Factura</i>	Motion to Set Aside/Vacate Default and Judgment Defendant Jennie Factura’s Motion to Set Aside Default and Vacate Default Judgment is DENIED. Defendant moves for an order setting aside the default judgment entered against her pursuant to Code of Civil Procedure section 473, subdivision (b) on the grounds of inadvertence, mistake, and/or excusable neglect, Code of Civil Procedure section 473.5, and the Court’s equitable powers. Code of Civil Procedure section 473 Code of Civil Procedure section 473, subdivision (b) permits the court to “relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” A motion seeking relief under section 473, subdivision (b) must be brought within 6 months “after the judgment, dismissal order, or proceeding was taken.” (Code Civ. Proc., § 473, subd. (b).) While “[a] default and default judgment may be set aside pursuant to the provisions of Code of Civil Procedure, section 473, subdivision (b), [] the motion must be made within six months after entry of the default.” (<i>Manson, Iver & York v. Black</i> (2009) 176 Cal.App.4th 36, 42.) The Court entered default against Defendant on 10/9/24. (ROA 20.) Defendant’s motion was filed on 11/17/25 and is therefore untimely. Code of Civil Procedure section 473.5 Defendant also moves pursuant to Code of Civil Procedure section 473.5. Section 473.5, subdivision (a) provides, “When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or a default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action.” “A defendant seeking to set aside a default or default judgment under section 473.5 must show, by affidavit, that his or her lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect.” (<i>Rios v. Singh</i> (2021) 65 Cal.App.5th 871, 885 [citing Code Civ. Proc., § 473.5, subd. (b).])